

**UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK**

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JOHN SPEARS

Plaintiff(s),

CASE No.: 1:10-cv-03461-JG -RE

-against-

THE CITY OF NEW YORK,  
P.O. FAWAD KHAN (Shield No: 7739),  
DET. FRANK GALATI (Shield No: 2819),  
DET. MATTHEW SAVAGE (Shield No: 6484),  
DET. ANDREW ERATO (Shield No. 2395),  
SGT. DANIEL SBARRA (Shield No. 5029),  
DET. GARY VANZANTEN,  
DET. TINA EVERETT,  
P.O. "JANE DOE" AND  
"JOHN DOE" 1-10.

**AMENDED COMPLAINT**

PLAINTIFF(S) DEMAND  
TRIAL BY JURY

1'through'10 inclusive,  
the names of the last defendants  
being fictitious, the true names  
of the defendants being unknown  
to the plaintiff(s).

Defendant(s).

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Plaintiff JOHN SPEARS, by his attorney, PAUL A. HALE, complaining of the  
defendants, respectfully alleges as follows:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff is also pleading a Monell claim.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the

First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

### **VENUE**

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391 (b), in that this is the District in which the claim arose.

### **JURY DEMAND**

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

### **PARTIES**

6. Plaintiff, JOHN SPEARS, born in 1969, is a African American male, a citizen of the United States, and at all relevant times a resident of the State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. Defendant, P.O. FAWAD KHAN (Shield No: 7739), is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant P.O. FAWAD KHAN (Shield No: 7739) is sued individually and in his official capacity. At all time relevant Defendant P.O. FAWAD KHAN (Shield No: 7739) was acting under the color of State Law in the course and scope of his duties and functions as

employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

10. Defendant, DET. FRANK GALATI (Shield No: 2819), is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant DET. FRANK GALATI (Shield No: 2819) is sued individually and in his official capacity. At all time relevant Defendant DET. FRANK GALATI (Shield No: 2819) was acting under the color of State Law in the course and scope of his duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

11. Defendant, DET. MATTHEW SAVAGE (Shield No: 6484), is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant DET. MATTHEW SAVAGE (Shield No: 6484) is sued individually and in his official capacity. At all time relevant Defendant DET. MATTHEW SAVAGE (Shield No: 6484) was acting under the color of State Law in the course and scope of his duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

12. Defendant, DET. ANDREW ERATO (Shield No. 2395), is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant DET. ANDREW ERATO (Shield No. 2395) is sued individually and in his official capacity. At all time relevant Defendant DET. ANDREW ERATO (Shield No. 2395) was acting under the color of State Law in the course and scope of his duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

13. Defendant, SGT. DANIEL SBARRA (Shield No. 5029), is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant SGT. DANIEL SBARRA (Shield No. 5029) is sued individually and in his official capacity. At all time relevant Defendant SGT. DANIEL SBARRA (Shield No. 5029) was acting under the color of State Law in the course and scope of his duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

14. Defendant, DET. GARY VANZANTEN, is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant DET. GARY VANZANTEN is sued individually and in his official capacity. At all time relevant Defendant DET. GARY VANZANTEN was acting under the color of State Law in the course and scope of his duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

15. Defendant DET. TINA EVERETT, is at all times relevant, an employee, agent and servant of the New York City Police Department an agency of the CITY OF NEW YORK. Defendant DET. TINE EVERETT is sued individually and in her official capacity. At all time relevant Defendant DET. TINE EVERETT was acting under the color of State Law in the course and scope of her duties and functions as employee, agent and servant of Defendant NEW YORK CITY and otherwise performed and engaged in conduct incidental to the performance of his lawful duties.

16. Defendant NEW YORK CITY POLICE OFFICERS JOHN DOE # 1 through 10, upon information and belief are, and at all times relevant, officers, employees and agents of

Defendant NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendant OFFICERS JOHN DOE 1 through 10 are sued individually and in their official capacity. At all times relevant, Defendant POLICE OFFICERS JOHN DOE # 1 through 10, were acting under the color of State Law in the course and scope of their duties and functions as agents, servants, employees of Defendant NEW YORK CITY POLICE and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant OFFICER JOHN DOE # 1 through 10 were acting for and on behalf of Defendant NEW YORK CITY POLICE DEPARTMENT at all times lawful duties as officers, employees and agents of Defendant NEW YORK CITY POLICE DEPARTMENT . Defendant OFFICERS JOHN DOE # 1 through 10 also acted for and upon the instructions received from and given by employees, agents and servants employed by the NEW YORK CITY POLICE DEPARTMENT .

17. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

18. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

### **FACTUAL ALLEGATIONS**

#### **(FIRST INCIDENT)**

17. On April 26, 2008 at approximately 6:00 pm while legally driving on Dekalb Ave. near Throope Ave. Mr. Spears was pulled over by an unmarked police car.

18. Two plain clothes officers approached Mr. Spear's car.

19. One officer told Mr. Spears he was in a "known drug area". This officer was a

white male with a black beard and approximately 5'8 210 lbs and in his late 30s. Upon information and belief this officer was Defendant P.O. FAWAD KHAN.

20. At that point, Defendant P.O. FAWAD KHAN opened Mr. Spears' driver side door and dragged him out of the car.

21. Mr. Spears was then thrown on the ground by Defendant P.O. FAWAD KHAN.

22. Mr. Spears was then handcuffed and placed under arrest.

23. It should be noted no contraband was found in Mr. Spears' car, at the scene or on his person.

24. Mr. Spears was taken to the 81st Pct. where he was fully strip searched by Defendant P.O. FAWAD KHAN. Again, no contraband was found on Mr. Spears.

25. Mr. Spears was released on his own recognizance approximately 2 days later.

26. Mr. Spears was charged with resisting arrest and attempting to tamper with evidence.

27. Mr. Spears had all charges dismissed after Mr. Spears made approximately 3 court appearances.

28. At no time in the above incident did Mr. Spears resist; try to evade the police; or tamper with any alleged evidence. Mr. Spears was doing nothing illegal.

(SECOND INCIDENT)

29. On October 10th, 2009 at approximately 7:20 PM Mr. Spears legally walking down DeKalb Ave. near Bushwick Ave.

30. While walking down the street an unmarked minivan pulled up behind Mr. Spears.

31. Three plain clothes detectives jumped out of the minivan and rushed at Mr.

Spears.

32. Upon information and belief these three officers were DET. FRANK GALATI, DET. MATTHEW SAVAGE, and DET. ANDREW ERATO.

33. DET. FRANK GALATI then grabbed Mr. Spears and threw him on the ground face first, resulting in his front tooth being knocked out of his mouth.

34. The other two officers then held Mr. Spears on the ground and hand cuffed him. Mr. Spears sustained scrapes and bruises from this unauthorized battery.

35. Mr. Spears was lifted up and told he was under arrest for tampering with evidence and resisting arrest.

36. It should be noted no contraband was recovered from the scene or on Mr. Spears.

37. Mr. Spears had his knocked out tooth placed in his front pocket.

38. Mr. Spears was taken to the local police Precinct.

39. Mr. Spears was fully strip searched by DET. FRANK GALATI.

40. DET. ANDREW ERATO knowing made false statements in the accusatory instrument in his attempt to maliciously prosecute plaintiff.

41. Mr. Spears was released on his own recognizance approximately two days later.

42. Mr. Spears had to make approximately three court appearances before all charges were dismissed on January 26, 2010.

#### (THIRD INCIDENT)

43. On June 22, 2010 at approximately 5:30 PM Mr. Spears was on his way home from work at the VA hospital on Lindon Boulevard.

44. On his way home from work Mr. Spears decided to shop for an air conditioner at the intersection of Broadway and Stuyvesant in Brooklyn, NY.

45. Not being able to afford any of the air conditioners Mr. Spears saw he decided to pick up some groceries at a deli on Broadway so as to prepare dinner for his family.

46. While lawfully walking home on the South Side of Hart Street between Broadway and Stuyvesant Ave. Mr. Spears was approached by two undercover NYPD officers in an unmarked car.

47. One of these officers was the DET. FRANK GALATI from the previous arrest. DET. FRANK GALATI was also the driver of the unmarked car.

48. At first, the officers told Mr. Spears to lie on the ground, which he protested because he had not done anything wrong.

49. Next, DET. FRANK GALATI demanded to see what was in his shopping bag.

50. DET. FRANK GALATI grabbed Mr. Spears bag and rifled through it. Then asked, "Where are the drugs?"

51. Mr. Spears, stated, "I don't do drugs."

52. At this point the officer who was riding in the passenger seat, SGT. DANIEL SBARRA, stated, "I saw him swallow it."

53. Mr. Spears was then handcuffed to a fence at 462 Hart Street.

54. Mr. Spears was forced to stand there handcuffed to a fence for approximately an hour while his friends and neighbors passed him.

55. At some point, DET. FRANK GALATI stated to Mr. Spears, "We're going to get you this time."

56. Eventually, a police van came and Mr. Spears was placed in the back of the van.

57. Mr. Spears was taken to the 81st Pct.

58. Mr. Spears was denied a telephone call after making numerous requests to call his



wife.

59. At the 81st Pct. Mr. Spears was subjected to a full strip search by DET. FRANK GALATI.

60. When nothing was found on Mr. Spears DET. FRANK GALATI commanded other officers to take him to Woodhull Hospital to be X-rayed for contraband.

61. Mr. Spears was transported to Woodhull hospital by 2 other uniformed officers.

62. Mr. Spears was placed in a hospital gown then handcuffed and shackled to a hospital bed for approximately 7 hours.

63. While at the hospital, both transporting officers told the attending doctor that Mr. Spears had "swallowed cocaine".

64. During this entire time, Mr. Spears was not allowed to use a restroom despite numerous requests.

65. After approximately 8 hours in the hospital, Mr. Spears was given 3 x-rays of his abdomen.

66. These x-rays were done without consent, permission, or authority of any kind.

67. All x-rays showed no foreign objects in Mr. Spears' body.

68. Mr. Spears was then transported back to the 81st Pct. at around 5 am.

69. Only then, was Mr. Spears allowed to call his wife.

70. Mr. Spears was then transported to central booking and released after all charges were dismissed at approximately 7 pm June 23rd, 2010.

71. DET. FRANK GALATI knowing made false statements in the accusatory instrument in his attempt to maliciously prosecute plaintiff.

72. At the above times and places plaintiff was wrongfully arrested without a warrant,

probable cause, or consent.

73. There was no reasonable suspicion of wrongdoing when plaintiff was approached, seized, detained, arrested and prosecuted.

74. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights.

75. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.

76. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff.

77. During the events described above, defendants acted maliciously and with the intent to injure plaintiff.

**FIRST CLAIM FOR RELIEF  
MUNICIPAL AND SUPERVISORY LIABILITY  
(Against Defendant City)**

78. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2009, New York City has seen a 46 percent jump in payouts to settle claims against the NYPD and has paid out more than \$117 million in fiscal year 2009, compared to \$80 million in 2008.<sup>1</sup> In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.<sup>2</sup>

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<sup>1</sup> Mayor Michael Bloomberg's preliminary Management Report for FY 2009, available at [http://www.nyc.gov/html/ops/downloads/pdf\\_mmr/nypd.pdf](http://www.nyc.gov/html/ops/downloads/pdf_mmr/nypd.pdf), see page 115, last visited on February 18, 2010.

<sup>2</sup> "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last available on December 9, 2010.

79. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

80. However, the City of New York has isolated NYPD officers from accountability for its civil rights lawsuits and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers. This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take

action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

81. Upon information and belief, defendant SGT. DANIEL SBARRA has previously been named in five other lawsuits for excessive force and false arrest in at least five other lawsuits: Jones v. City of New York, Docket No. 09-CV-01088-RRM-RML, (pending in the Eastern District of New York), Roberson v. City of New York et al, 06-CV-00213-CPS-RML, E.D.N.Y., Ingram et al v. City of New York, et al, 08-CV-01055-KAM-VVP, E.D.N.Y., McKoy v. The City of New York, et al, 08-CV-02022-ENV-RLM, E.D.N.Y., and Labrew v. The City of New York et al, 07-CV-04641-DAB, S.D.N.Y. All of these cases, except for Jones v. City of New York, have settled for a total \$171,500.

82. P.O. FAWAD KHAN has been sued in three other law suits 1:06-cv-05459-NGG-KAM Berrios v. City of New York et al, 1:09-cv-01088-RRM-RML Jones v. The City of New York et al 1:09-cv-05054-FB -MDG Walker v. The City of New York et al.

83. DET. FRANK GALITI has been sued once before. 1:08-cv-01841-ENV-JMA Bailey v. The City of New York et al.

84. DET. ANDREW ERATO has been sued at least once before 1:04-cv-03335-JG-CLP Franke v. City of New York et al.

85. The City of New York does not track the lawsuits filed against SGT. DANIEL SBARRA or other officers and likewise does not track the amount of lawsuits filed per precinct or command. There is no mechanism through which Commanding Officers or Deputy Inspectors are alerted or can track how much liability their officers are within their precinct or command in terms of civil rights lawsuits. SGT. DANIEL SBARRA's duties as a supervisor have not been

modified as a result of his multiple lawsuits and he continues to hold a leadership and supervisory role over subordinate police officers. His leadership and supervisory position, despite multiple civil rights lawsuits, sends a message to new police officers that the City of New York tolerates civil rights violations and that they may commit civil rights violations without punishment. The City's failure to review and digest lawsuits for patterns of misconduct and essentially turn a blind eye towards officers involved in multiple incidents of police brutality caused plaintiff's damages.

86. The City has further isolated the NYPD from being deterred by judicial review by not establishing a system through which to notify individual officers or their supervisors of unfavorable judicial review of their conduct in suppression hearings and criminal trials. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings in both criminal and civil court that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

87. The aforesaid event underlying plaintiff's factual allegations was not an isolated incident nor was it isolated to NYPD officers, despite evidence of their repeat routine misconduct. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully bring charges against citizens with no legal basis, use excessive force against citizens and create charges in an effort to cover up their misconduct, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of

their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

88. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors, in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

89. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff’s civil rights, without fear of reprisal.

90. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

91. As a direct and proximate cause of the acts of the defendants, plaintiff suffered the following injuries and damages:

A. An arrest not based upon probable cause;

- B. Unwarranted and malicious criminal prosecution;
- C. Deprivation of liberty without due process of law;
- D. Excessive force imposed upon him;
- E. Summary punishment imposed upon him; and
- F. Denied equal protection under the law.

**SECOND CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. S 1983**

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

93. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

94. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

95. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

96. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

97. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the

respective municipality/authority, which is forbidden by the Constitution of the United States.

98. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have excessive force imposed upon him;
- E. Not to have summary punishment imposed upon him; and
- F. To receive equal protection under the law.

**WHEREFORE**, plaintiff respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;

Dated: 2/7/2012  
Brooklyn, NY



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